

Weekly Reading Reflections #11: Sergio Monterroso

Artifacts Reflection

Whose History?

Issac (Not Jacob) brought up a good point that if an artifact or historically significant object is found on private land, who owns it? In class, I tried to counter that the land itself was stolen and so artifacts of the land during that period are also stolen: that is, if we find Cherokee arrowheads, it doesn't belong to you because it was property left over from Cherokee removal and so it belongs to them. This line of thinking is most aligned with history practice, but it comes with political ramifications that have been angering me on social media websites for a while. When dealing with indigenous groups, the frequent counter to facilitating their place in American History is that they were conquered from their land, not stolen — which property right theory disagrees with but that's another discussion. Theft cannot be justified ever, but for the purpose of this reflection, I proceed under the premise that it can if for utilitarian goals.

Another issue that comes with facilitating the repatriation of these artifacts is that removing them from museums makes them less accessible to history studies, but this fails in my reflection. Teya brought up a great point that the idea of how only certain people of the museum's determination are worthy of seeing the artifacts, many of which are not in display anyways but instead in storage, is asinine. Close your eyes and picture a museum visitor that can visit the Met, what do you see? Yeah... you see an audience of rich, white history. Theft to please this crowd is not justified. Worse is that we bring the problem of museumification of living people similar to what we discussed previously. Indigenous groups continue living yet we place their ((stolen)) items in a museum and study them as if they were in the past — meanwhile they're still here. This is a cultural violation.

Reconciling this with my bleeding-heart libertarianism was an interesting thought experiment, which gave me some new conclusions to think about. If a museum is not going to return stolen items to the collective that owned them, what should be done? Are these cultural violations enforceable by the court of public opinion, or are they criminal violations held to by enforcement of the state? My answer: it is both theft and a cultural violation.

Politics of Artifacts

But the policing of crimes involving artifacts is, like policing of laws in-general, rarely apolitical. Hobby Lobby getting let off with a small fine (comparable to their wealth) is an example of this politicized policing. The enforcement arm responsible for policing artifacts is underfunded with a small staff office. Even if they wanted to enforce the law to the letter, they could not with the appropriations that they have. The situation of THPO makes it so that the state is better incentivized to just assess a civil penalty and move on. Whether that situation was made intentionally or just as a matter of bad policy is a different discussion.

When Dr. Spike came to speak about the enforcement mechanisms of legislation like NAGPRA, I originally assumed that the penalty for violating these bills would be a revocation of federal funding. I was apparently wrong: that was only to determine the jurisdiction of the office. The fact that it's just a civil penalty reminds me of an old joke that I've heard: speeding isn't illegal, it just has a fee attached to it.